

**COURT OF APPEALS, DIVISION I
STATE OF WASHINGTON**

ZACKARIAH BENNETT,

Appellant,

v.

MELVINA MANNING,

Respondent.

Court of Appeals No.: 87007-6

Superior Court No.: 23-2-11352-7 KNT

STATEMENT OF ARRANGEMENTS

Pursuant to RAP 9.2, Appellant Zackariah Bennett submits this Statement of Arrangements to provide an accurate overview of critical records necessary for appeal and ensure all relevant factual disputes and procedural issues are thoroughly considered.

I. ISSUES TO BE RAISED ON APPEAL

1. Failure to Consider Plaintiff's Factual Opposition:

The trial court overlooked material disputes presented in Plaintiff's opposition, detailing specific inconsistencies in Defendant's claims of abandonment, drug use, and Plaintiff's alleged violence, which were contradicted by documented evidence (e.g., social media records, family statements, and timelines).

2. Spoliation of Evidence:

During discovery on this matter, Defendant submitted a partial, edited version of security footage from a previous matter on appeal¹. Then, after being confronted on its authenticity, Defendant admitted it was not the original, and to deleting significant portions of video evidence during the hearings after Plaintiff had requested it for exoneration, in which it was withheld by Defendant.

3. Abuse of Discretion, Bias, and Misapplication of Legal Standards:

The trial court failed to address the Motion to Correct Misrepresentation², an appealable error, particularly as the motion raised material factual disputes and procedural inaccuracies that, if corrected, could have impacted the summary judgment decision. When a trial court disregards a motion without explanation, especially one that clarifies potential misrepresentations affecting the fairness of proceedings, it can be seen as an abuse of discretion.

The trial court considered facts that were not part of the hearing record, over objection from the non-movant, and offer to provide evidence. The decision reflects clear bias, reliance on unsupported facts outside the record, and misapplication of the standards set forth in CR 56 and FED. R. CIV. P. 56.

¹ See: 22-2-09380-3 KNT; also: 844504-1, and 102950-1

² See: Sub#61 Mtn. to Corr. Misrep. 07/01/2024

In *Cofer v. Pierce County*, 8 Wn.App. 258, 263-64, 505P.2d476 (1973), the court stated:

“Interpreting the proposed evidence in a light most favorable to the nonmoving party, as we must, we find that the evidence plaintiff’s counsel alleged he could obtain would present a genuine issue of material fact. We therefore conclude that a failure to accord the non-moving party a reasonable opportunity to show the existence of an issue of material fact constitutes an abuse of discretion.”

4. Pattern of Perjury and Counsel’s Rule 11 Violations:

Defendant’s counsel allegedly made unsupported representations, knowingly submitted false and/or misleading information, and failed to correct previously filed false/misleading material statements in violation of RPC 3.3.

These acts, along with potential Rule 11 violations, suggest attempts to evade judicial scrutiny and improperly influence the court’s summary judgment ruling.

5. Unaddressed Claims:

Plaintiff’s initial complaint raised claims for defamation, intentional infliction of emotional distress, custodial interference, and tortious interference with parental rights. These claims remain unresolved, with critical facts and evidence overlooked by the trial court in its summary judgment decision.

6. Misrepresentation:

Defendant argued for summary judgement on this matter, asking the Superior Court to view it as wholly related to cause# [22-2-09380-3 KNT] and therefore precluded by res judicata.

Defendant, in conflict, told the Supreme Court³ that this matter was unrelated, as was the video - which was in fact the ONLY video of the events in the matter under review by them, and which had been withheld.

³ 102950-1 Respondent's Answer 06/21/2024

II. TRANSCRIPT OF PROCEEDINGS

Appellant requests transcription of all relevant proceedings in the King County Superior Court, particularly:

- Hearing on Defendant's Motion for Summary Judgment
- Hearing on Plaintiff's Motion to Strike and Motion for Sanctions
- Any additional hearings in which Defendant's counsel introduced alleged misrepresentations and evidence outside the record.

Given these issues, Appellant requests that the transcripts include full documentation of proceedings where disputed evidence and material facts were discussed.

III. VERBATIM REPORT OF PROCEEDINGS

Arrangements are being made for a verbatim report of key hearings. Appellant seeks to obtain transcripts from the following:

- The Summary Judgment Hearing: To assess the basis of the trial court's decision, particularly its reliance on evidence outside the record.
- Any hearings or conferences in which counsel for Defendant presented disputed claims of abandonment, drug use, or violence that were contradicted by Plaintiff's documented evidence.

Appellant has applied for an Order of Indigency⁴, and upon approval, requests that any necessary delays in transcription be accommodated by the court.

⁴ Motion for Order of Indigency filed on 08/14/2024

IV. DESIGNATION OF CLERK'S PAPERS

Appellant has designated essential Clerk's Papers, including:

- Plaintiff's Initial Complaint (Bennett v. Manning)
- Opposition to Defendant's Motion for Summary Judgment
- Motion to Correct Misrepresentation
- Motion for Reconsideration and Memorandum of Points and Authorities
- Court's Order on Summary Judgment
- Any exhibits or submissions regarding misrepresentation, spoliation, and the misapplication of law related to domestic violence protection orders.

V. INDIGENCY STATUS

Appellant has filed for an Order of Indigency⁵, and patiently awaits the court's decision. Upon approval, arrangements will proceed in accordance with RAP 9.2 and 9.5.

VI. REQUEST FOR ACCOMMODATION

Due to disability-related issues, as well as financial limitations, Appellant respectfully requests GR-33(a)(1)(c) accommodation in the form of legal counsel and/or paralegal assistance; as Appellant is struggling to complete transcription and other necessary arrangements, pursuant to RAP 18.8(b) in a timely manner.

This accommodation will ensure full compliance with appellate requirements and an accurate record for review. The reduction in time and frustration inherent with pro se litigants would significantly benefit all parties involved, and would provide assurance to the court in terms of this matter being both meritorious and properly before the court.

⁵ id

In closing, as stated in *Sluman v. State*⁶:

“This court reviews a summary judgment order de novo, engaging in the same inquiry as the trial court. Highline School District No. 401 v. Port of Seattle, 87Wn.2d 6,15, 548 P.2d 1085 (1976). Summary judgment is proper if the record shows “there is no genuine issue as to any material fact” and “the moving party is entitled to a judgment as a matter of law.” CR 56(c). A genuine issue is one upon which reasonable people may disagree; a material fact is one controlling the litigation’s outcome. Ranger Insurance Co. v. Pierce County, 164 Wn.2d 545, 552, 192 P.3d 886 (2008). This court construes all facts and reasonable inferences in the light most favorable to the nonmoving party. Barber v. Bankers Life & Casualty Co., 81 Wn.2d 140, 142, 500 P.2d 88 (1972). In ruling on summary judgment, we do not weigh evidence or assess witness credibility. Barker v. Advanced Silicon Materials, LLC, 131 Wn. App. 616, 624, 128 P.3d 633 (2006).”

DATED: 10/29/2024

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', with a stylized flourish at the end.

Pro Se

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1096 words

⁶ *Sluman v. State*, No. 34467-3-III